

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Workmen's Compensation Act, 1906	6 Edw. 7. c. 58.
Workmen's Compensation (Silicosis) Act, 1918 ...	8 & 9 Geo. 5. c. 14.
Government of Ireland Act, 1920	10 & 11 Geo. 5. c. 67.
National Insurance (Industrial Injuries) Act, 1946	9 & 10 Geo. 6. c. 62.
National Insurance Act, 1946	9 & 10 Geo. 6. c. 67.
National Assistance Act, 1948	11 & 12 Geo. 6. c. 29.

CHAPTER 23

Reserve and Auxiliary Forces (Training) Act, 1951

ARRANGEMENT OF SECTIONS

PART I

TEMPORARY PROVISIONS FOR CALLING UP FOR TRAINING, ETC.

Section

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SCHEDULE.—Modifications of ss. 51 and 52 of 11 & 12 Geo. 6. c. 64 and regulations thereunder.

An Act to make temporary provision for the calling up of certain members of His Majesty's military and air forces for the purposes of training, and in connection therewith to provide for the punishment of incitement to dereliction of duty; to extend the provisions of Part II of the National Service Act, 1948; to make provision as to the liabilities of persons released from service for the purpose of again joining any of the armed forces of the Crown; and for purposes connected with the matters aforesaid.

[21st March 1951.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

TEMPORARY PROVISIONS FOR CALLING UP FOR TRAINING, ETC.

Calling up of reserves and auxiliaries for training and instructor duties.

1.—(1) Subject to the provisions of this Act, the Service Authority may in the year nineteen hundred and fifty-one call up persons of any of the descriptions specified in the first column of the following table for one period of service in the United Kingdom of a description specified in relation to that description of persons in the second column of that table, being a period (allowance being made for travelling time as hereinafter provided) of a duration not exceeding that specified in the third column of the said table.

TABLE

Persons liable to be called up	Description of service	Maximum period of service
1. The following members of His Majesty's military forces:— (a) officers of the Regular Army Reserve of Officers, other than officers of the Supplementary Reserve of Officers; (b) officers of the Territorial Army Reserve of Officers; (c) officers holding emergency commissions; (d) persons released under section three or section four of the Armed Forces (Conditions of Service) Act, 1939, being persons who since their release have not, for the purpose of again entering or enlisting in any of the armed forces of the Crown, relinquished their commissions or been discharged; (e) men of the army reserve, not being militiamen.	Training	15 days

Persons liable to be called up	Description of service	Maximum period of service
2. The following members of His Majesty's air forces:— (a) officers of the Royal Air Force Reserve of Officers, other than officers of that reserve who are liable to undergo periodical training; (b) officers of the Royal Air Force Volunteer Reserve, other than persons appointed to commissioned rank in that reserve since the eighteenth day of August, nineteen hundred and forty-six; (c) officers holding emergency commissions, not being persons specified in the last foregoing sub-paragraph; (d) persons released under section five or section six of the Armed Forces (Conditions of Service) Act, 1939, being persons who since their release have not, for the purpose of again entering or enlisting in any of the armed forces of the Crown, relinquished their commissions or been discharged; (e) men of the air force reserve, including the Royal Air Force Volunteer Reserve, not being men who have enlisted in the Royal Air Force Volunteer Reserve since the eighteenth day of August, nineteen hundred and forty-six or who as men of the air force reserve have since that date received training in aircrew duties.	Training	15 days
3. Officers and men belonging to fighter squadrons of the Royal Auxiliary Air Force, being persons who have entered or been enlisted or re-engaged in that force since the eighteenth day of August, nineteen hundred and forty-six.	Training	3 months
4. The following members of His Majesty's air forces:— (a) officers of the Royal Air Force Reserve of Officers or of the Royal Air Force Volunteer Reserve, who as such officers have since the eighteenth day of August, nineteen hundred and forty-six received training in aircrew duties; (b) men of the air force reserve, including the Royal Air Force Volunteer Reserve, who as men of the air force reserve have since the eighteenth day of August, nineteen hundred and forty-six received training in aircrew duties.	Training in aircrew duties	3 months
5. Members of His Majesty's air forces of the classes specified in sub-paragraphs (a) and (b) of the last foregoing paragraph.	Flying instructor duties	18 months

PART I
—cont.

(2) For the purposes of the foregoing subsection service on any flight of which the point of departure is within the United Kingdom and of which the point of intended return is within the United Kingdom shall be deemed to be service within the United Kingdom.

(3) Where apart from this section a person is under a liability to undergo periodical training, then—

- (a) if he is called up under this section he shall be released from the said liability as respects the year in which he is so called up;
- (b) the maximum period for which he may be called up under any paragraph of the table set out in subsection (1) of this section shall be reduced by the amount of any training which he has previously undergone in the same year in pursuance of the said liability:

Provided that a person shall not, by virtue of paragraph (a) of this subsection, be released from any liability to undergo training for a period of three days or less, and for the purposes of paragraph (b) thereof any training for such a period shall be disregarded.

(4) Subject to the provisions of the last foregoing subsection, nothing in the foregoing provisions of this section shall be construed as derogating from any power to require persons to serve or to undergo training.

(5) In the foregoing provisions of this section—

- (a) the expression “the United Kingdom” includes the Isle of Man;
- (b) references to a liability to undergo training are references to any obligation, howsoever arising and whether legally enforceable or not, to undergo training;
- (c) references to officers holding emergency commissions are references to any person whose appointment to an emergency commission has been notified in the London Gazette and who has not relinquished that commission.

(6) The powers conferred by this section do not extend to the calling up of persons serving whole-time in the armed forces of the Crown or of persons serving, in pursuance of section one of the National Service Act, 1948, in an auxiliary force within the meaning of the said section one.

Procedure for
calling up
under s. 1.

2.—(1) The Service Authority may cause a notice to be served on any person who is liable to be called up under the foregoing section, stating that he is so called up, specifying the service and period for which he is so called up, and requiring him to present himself at such place, on such day (not earlier than the twenty-first day after the date of the service of the notice), and to such authority, as may be specified in the notice.

(2) Where a notice has been served on any person under this section, the Service Authority may at any time before the day on which he is thereby required to present himself cause to be served on him a supplementary notice varying the previous notice in so far as it specifies the place at which he is required to present himself.

(3) Where a notice has been served on a person under this section and has not been superseded under subsection (5) of this section or cancelled under the next following section, then if he fails, otherwise than by reason of such sickness or other reasonable excuse as may be allowed in the prescribed manner, to present himself in compliance with the notice, he shall be liable on summary conviction to a fine not exceeding twenty-five pounds, or to imprisonment for a period not exceeding one month, or to both such fine and such imprisonment:

Provided that it shall be a defence for him to prove that, either before the service of the notice under this section or within seven days after the service thereof, he had applied in the appropriate manner for exemption from liability to be called up under the foregoing section, either generally or as respects any period including the day specified in the notice under this section served on him, and that he had not before that day been notified that the application had been refused.

(4) Any notice under this section may be served on a person by sending it to him by post addressed to him at his last-known address:

Provided that, notwithstanding anything in section twenty-six of the Interpretation Act, 1889, where such a notice has been served on any person by post, service on him shall not be deemed to have been duly effected unless it is proved either that he received the notice or that it was sent by registered post addressed to him at his last-known address.

(5) Every notice under this section served otherwise than by registered post shall require the person on whom it is served to acknowledge receipt thereof within such time as may be specified in the notice; and if acknowledgment is not received—

(a) the Service Authority may cause a further notice under this section to be served on the said person by registered post, requiring him to present himself either on the same day as was specified in the original notice or on such subsequent day as may be specified in the further notice;

(b) if such a further notice is served, it shall have effect in substitution for the original notice.

(6) If, otherwise than by reason of such sickness or other reasonable excuse as may be allowed in the prescribed manner, a person called up by a notice under this section fails to present himself for the service for which he was called up, then without

PART I
—cont.

prejudice to the bringing of proceedings against him under subsection (3) of this section a direction may be given to him by a person authorised in that behalf by the Service Authority cancelling the notice.

(7) For the avoidance of doubt it is hereby declared that where a notice under this section is cancelled under any of the provisions of this Part of this Act the person to whom the cancelled notice related shall be liable to be called up under the foregoing section as if he had not been called up by that notice.

Medical
examination
of persons
to be called
up for short-
term training.

3.—(1) The Service Authority may in the year nineteen hundred and fifty-one cause to be served on a person of any of the descriptions specified in paragraphs 1 and 2 of the table set out in subsection (1) of section one of this Act, being a person required (subject to the result of his medical examination) for service of a description specified in the said table in relation to persons of his description, a notice requiring him, at such time on such day as may be specified therein, to submit himself for medical examination by a medical board at such place as may be so specified.

(2) Any notice served on a person under the last foregoing subsection may, at his request, be varied by a subsequent notice served on him thereunder.

(3) Where a notice under the last foregoing section has been served on a person, and it is determined by or on behalf of the Service Authority that, having regard to the result of his examination in pursuance of this section or other sufficient evidence, he is not fit for the service for which he was called up by the notice, then as soon as may be that notice shall be cancelled by notification given to the person in question by or on behalf of the Service Authority; but subject as aforesaid as soon as may be after completion of the examination in pursuance of this section of a person on whom a notice under the last foregoing section has previously been served, he shall be notified by or on behalf of the Service Authority that he has been found fit for the service for which he was called up by that notice.

(4) If any person fails to comply with the requirements of a notice served on him under subsection (1) of this section or of any such regulations or directions as are referred to in the next following subsection, then without prejudice to the service on him of a subsequent notice or to the giving to him of a subsequent direction he shall be liable on summary conviction to a fine not exceeding twenty-five pounds, and if a notice has been served on him under the last foregoing section the Service Authority may cause the notice to be cancelled by notification given to the person in question:

Provided that, without prejudice to the cancellation of any notice served under the last foregoing section, in any proceedings

for an offence under this subsection it shall be a defence for the defendant to prove that he was prevented from complying with the notice under subsection (1) of this section, the regulations or directions by circumstances beyond his control:

PART I
—cont.

Provided also that no person shall be convicted of an offence under this subsection unless the court is satisfied that the notice served on him under subsection (1) of this section was served at such time before the date specified therein as to allow the person upon whom it was served reasonable time to comply with the said notice having regard to all the circumstances of the case.

(5) The medical boards for the purposes of this section shall be medical boards constituted for the purposes of section eight of the National Service Act, 1948 (which provides for the medical examination of persons to be called up under that Act), and subsection (2) of the said section eight (which authorises the making of regulations as to the constitution and procedure of medical boards, and in particular for enabling a medical board to direct a further medical examination or to direct the person examined to submit himself for examination by a consultant examiner) and the regulations for the time being in force thereunder shall apply in relation to medical examination for the purposes of this section.

(6) Any notice under subsection (1) of this section, and any notification required or authorised to be given under this section, may be sent by post addressed to the person to whom it relates at his last-known address.

(7) Subsection (9) of section eight, and section fifty-five, of the National Service Act, 1948 (which provide for the payment by the Minister of Labour and National Service of remuneration and allowances to members of medical boards and consultant examiners, for the payment by that Minister of travelling and other allowances to persons undergoing medical examination, and for defraying the expenses of that Minister) shall apply in relation to medical examination for the purposes of this section; but—

(a) the amount determined by the Service Authority and the said Minister, with the consent of the Treasury, to represent the increase attributable to the provisions of this section in the expenses of the said Minister in connection with medical boards and consultant examiners, and with the payment of such travelling and other allowances as aforesaid, shall be reimbursed by the Service Authority out of moneys provided by Parliament;

PART I
—cont.

(b) the receipts of the said Minister under the last foregoing paragraph shall be applied as appropriations in aid of the moneys provided by Parliament for his expenses under the said Act of 1948.

Release from
service under
s. 1.

4.—(1) Subject as hereinafter provided, a person who presents himself for service for which he has been called up under section one of this Act shall be released from that service on the expiration, from the time at which he so presents himself, of a period of time equal to the length of the period of service for which he was called up reduced by his reasonable travelling time:

Provided that he may, if a person authorised in that behalf by the Service Authority so directs, be released at any earlier time.

(2) If, otherwise than by reason of such sickness or other reasonable excuse as may be allowed in the prescribed manner, a person called up under section one of this Act by virtue of paragraph 1 or 2 of the table set out in subsection (1) of that section presents himself on any day later than that on which he was required by the notice to present himself, and is released within twenty-four hours of the time at which he presents himself, then without prejudice to any proceedings which may be brought against him under subsection (3) of section two of this Act he shall be liable to be called up under section one of this Act as if he had not been called up by that notice.

(3) The Service Authorities shall by regulations make provision for determining the reasonable time needed by persons for travelling to the places at which they are required to present themselves on being called up under section one of this Act and for returning from the places at which they are released at the end of the service for which they were so called up; and the reference in subsection (1) of this section to a person's reasonable travelling time shall be construed as a reference to the time which in his case is determined by or under regulations under this subsection to be the reasonable time needed by him for travelling and returning as aforesaid.

(4) If during the period first mentioned in subsection (1) of this section a person called up under section one of this Act ceases to be comprised in any of the descriptions specified in the first column of the table set out in subsection (1) of that section, without becoming comprised in another such description, he shall thereupon be released from the service for which he was so called up.

(5) The power to make regulations conferred by subsection (3) of this section shall be exercisable by statutory instrument, and any such statutory instrument shall be subject to annulment in pursuance of a resolution of either House of Parliament.

5.—(1) A person called up under section one of this Act shall, during the period beginning when he presents himself for the service for which he was so called up and ending with the time at which he is released from that service—

PART I
—cont.

Application to persons called up of Army Act and Air Force Act, and provisions as to discipline, pay, etc.

- (a) if called up as a member of His Majesty's military forces, be subject to military law as an officer or as a soldier, as the case may be, and
- (b) if called up as a member of His Majesty's air forces, be subject to the Air Force Act as an officer or as an airman, as the case may be.

(2) The Service Authority may make regulations as to the discipline and pay (including allowances and bounty) of persons called up under section one of this Act, for determining the units or formations in which such persons shall serve, and otherwise for the purposes of this Part of this Act, and in particular for prescribing anything thereby required to be prescribed.

(3) Any regulations under this section shall be laid before both Houses of Parliament as soon as practicable after they are made.

6.—(1) If any person maliciously and advisedly incites persons called up or liable to be called up under this Part of this Act to failure in the performance, or to evasion, of any duties or liabilities under this Part of this Act which they are, or may become, liable to perform or discharge, he shall be guilty of an offence under this section.

Penalty for incitement to disobedience.

(2) If any person, with intent to commit or to aid, abet, counsel, or procure the commission of an offence under the preceding subsection, has in his possession or under his control any document of such a nature that the dissemination of copies thereof among such persons as aforesaid would constitute such an offence, he shall be guilty of an offence under this section.

(3) If a judge of the High Court is satisfied by information on oath that there is reasonable ground for suspecting that an offence under this section has been committed, and that evidence of the commission thereof is to be found at any premises or place specified in the information, he may, on an application made by an officer of police of a rank not lower than that of inspector, grant a search warrant authorising any such officer as aforesaid named in the warrant together with any other persons named in the warrant and any other officers of police to enter the premises or place at any time within one month from the date of the warrant, if necessary by force, and to search the premises or place and every person found therein, and to seize anything found on the premises or place or on any such person which the officer has

PART I
—cont.

reasonable ground for suspecting to be evidence of the commission of such an offence as aforesaid:

Provided that—

- (a) a search warrant shall only be issued in respect of an offence suspected to have been committed within the three months prior to the laying of the information thereof; and
 - (b) if a search warrant under this section has been executed on any premises, it shall be the duty of the officer of police who has conducted or directed the search to notify the occupier that the search has taken place, and to supply him with a list of any documents or other objects which have been removed from the premises, and where any documents have been removed from any other person to supply that person with a list of such documents.
- (4) No woman shall, in pursuance of a warrant issued under the last foregoing subsection, be searched except by a woman.
- (5) Anything seized under this section may be retained for a period not exceeding one month, or if within that period proceedings are commenced for an offence under this section until the conclusion of those proceedings, and subject as aforesaid, and to the provisions of this section conferring powers on courts dealing with offences, the Police (Property) Act, 1897 (which makes provision with respect to the disposal of property in the possession of the police) shall apply to property which has come into the possession of the police under this section as it applies to property which has come into the possession of the police in the circumstances mentioned in that Act.
- (6) A person guilty of an offence under this section shall be liable, on conviction on indictment to imprisonment for a term not exceeding two years or to a fine not exceeding two hundred pounds, or on summary conviction to imprisonment for a term not exceeding four months or to a fine not exceeding twenty pounds, or (whether on conviction on indictment or on summary conviction) to both such imprisonment and fine.
- (7) No prosecution in England or Wales under this section shall take place without the consent of the Attorney-General.
- (8) Where a prosecution under this section is being carried on by or under the direction of the Attorney-General, a court of summary jurisdiction shall not deal with the case summarily without his consent.
- (9) Where any person is convicted of an offence under this section, the court dealing with the case may order any documents connected with the offence to be destroyed or dealt with in such other manner as may be specified in the order, but no documents

shall be destroyed before the expiration of the period within which an appeal may be lodged, and if an appeal is lodged no document shall be destroyed until after the appeal has been heard and decided.

PART I
—cont.

(10) For the purposes of the application of this section to Scotland—

- (a) subsection (3) shall have effect as if for references to a judge of the High Court there were substituted references to the sheriff, and any application for a search warrant under the said subsection shall be made by the procurator fiscal instead of such officer as is therein mentioned;
- (b) subsection (5) shall not apply provided that anything seized under this section may be retained for a period not exceeding one month, or if within that period proceedings are commenced for an offence under this section until the conclusion of those proceedings, and subject as aforesaid and to the provisions of any enactment, including this section, conferring powers on courts dealing with offences, any property which has come into the possession of the police under this section shall be returned to the owner, or, if the owner cannot be ascertained, shall be disposed of in such manner as the sheriff, in a summary application made to him, may direct;
- (c) the powers conferred by this section on the sheriff shall not be exercisable by an honorary sheriff substitute.

(11) For the purposes of the application of this section to Northern Ireland—

- (a) for subsection (7) there shall be substituted the following subsection:—

“(7) No prosecution in Northern Ireland under this section shall take place without the consent of the Attorney-General for Northern Ireland”;
- (b) in subsection (8), for the reference to the Attorney-General, there shall be substituted a reference to the Attorney-General for Northern Ireland; and
- (c) any reference to the rank of inspector of police shall be construed as a reference to the rank of head constable of the Royal Ulster Constabulary.

7. Proceedings for an offence under this Part of this Act may Legal be taken against a person at any place at which he is for the proceedings. time being.

PART II

APPLICATION OF PART II OF NATIONAL SERVICE ACT, 1948, TO
TRAINING AND SERVICE OF RESERVE AND AUXILIARY FORCES

Application of
ss. 51 and 52 of
11 & 12 Geo. 6.
c. 64 to short-
term training
under s. 1.

8.—(1) Sections fifty-one and fifty-two of the National Service Act, 1948 (which provide respectively for protecting persons liable to training under that Act from dismissal from employment in consequence of such liability, and for protecting the rights to holidays of such persons and adjusting their contracts of service or apprenticeship, where those rights or contracts are affected by such training) and any regulations for the time being in force under either of those sections, shall, subject to the modifications set out in the Schedule to this Act, apply in relation to liabilities to which persons are subject by virtue of paragraph 1 or 2 of the table set out in subsection (1) of section one of this Act.

(2) No liability to which a person is subject by virtue of the said paragraph 1 or 2 shall be deemed to be such an obligation to serve as is mentioned in paragraph (b) of section one of the Reinstatement in Civil Employment Act, 1950 (which section, among other things, confers reinstatement rights on persons entering on whole-time service in pursuance of obligations to serve as commissioned officers when called upon).

Reinstatement
rights of
persons called
up or
volunteering
for longer
periods.

9.—(1) The Reinstatement in Civil Employment Act, 1950 (which applies the provisions of Part II of the National Service Act, 1948 as to reinstatement in civil employment to persons, among others, who have entered upon a period of whole-time service in the armed forces of the Crown in the circumstances mentioned in section one of that Act) shall apply—

- (a) to any service to which a person is liable by virtue of paragraph 3, 4 or 5 of the table set out in subsection (1) of section one of this Act, and
- (b) to any service for a period of eighteen months for which a naval or marine reserve officer volunteers or has on or after the twenty-ninth day of January, nineteen hundred and fifty-one, volunteered,

as the said Act of 1950 applies to whole-time service in the circumstances specified in paragraph (a) of section one of that Act (which relates to the calling out on permanent service of members of the reserve and auxiliary forces); and section one of that Act shall apply to any such service as is specified in paragraph (a) of this subsection whether it is entered on in consequence of being called up under section one of this Act or in consequence of volunteering.

(2) A certificate of the competent authority as to whether—

- (a) a person has volunteered for any service for which he was liable as mentioned in paragraph (a) of subsection (1) of this section, or has entered on such service in pursuance of so volunteering, or

- (b) a naval or marine reserve officer has at any time on or after the said twenty-ninth day of January volunteered for service for a period of eighteen months, or has served in pursuance of so volunteering,

PART II
—*cont.*

shall be conclusive for the purposes of any proceedings before, or on appeal from, a Reinstatement Committee.

In this subsection the expression “competent authority”, in relation to a person mentioned in paragraph (a) of this subsection, means the Air Council or an officer designated by the Air Council and, in relation to a naval or marine reserve officer, means the Admiralty or an officer designated by the Admiralty.

(3) In the foregoing provisions of this section the expression “naval or marine reserve officer” means an officer of any reserve force of the Royal Navy or the Royal Marines or an officer of reserve to, on the retired or emergency list of, or holding a temporary commission in, the Royal Navy or the Royal Marines.

(4) In accordance with subsection (1) of this section references in subsection (2) of section five of the said Act of 1950 (which makes consequential adaptations of the said Act of 1948) to a person who may be required to enter on whole-time service, and to the date on which a person is required to attend for the purpose of entering thereon, shall include respectively references to any such person as is referred to in paragraph (a) or (b) of subsection (1) of this section who has volunteered for any such service as is specified in the paragraph in question, and to the date on which such a volunteer is to attend for his said service.

10.—(1) If it appears to His Majesty in Council expedient in all the circumstances so to do, His Majesty may by Order in Council make provision for applying, subject to such adaptations or modifications as may be specified in the Order, all or any of the enactments referred to in the foregoing provisions of this Part of this Act in relation to such liabilities (howsoever arising and whether legally enforceable or not) of members of any of His Majesty’s reserve or auxiliary forces, or of any description of such members, as may be so specified.

Power to
apply
preceding
provisions to
other reserve
and auxiliary
liabilities.

(2) An Order in Council under this section may contain such incidental and consequential provisions (including provisions for adapting or modifying any enactment or instrument having effect under an enactment) as may be specified in the Order.

(3) A draft of any Order in Council proposed to be made under this section shall be laid before Parliament, and the draft shall not be submitted to His Majesty except in pursuance of an address presented by each House of Parliament praying that the Order be made.

PART II
—*cont.*

(4) Any Order in Council under this section may be varied or revoked by a subsequent Order in Council.

(5) In this section the expression "His Majesty's reserve or auxiliary forces" means any reserve force of the Royal Navy or the Royal Marines, the Supplementary Reserve of Officers, the army reserve, the Territorial Army, the Royal Air Force Reserve of Officers, the air force reserve, including the Royal Air Force Volunteer Reserve, and the Royal Auxiliary Air Force; and for the purposes of this section an officer of reserve to, or on the emergency list of, the Royal Navy or the Royal Marines shall be treated as a member of His Majesty's reserve or auxiliary forces.

Expenses
under Part II.

11. There shall be defrayed out of moneys provided by Parliament any additional expenses which by virtue of this Part of this Act fall to be defrayed out of such moneys under section fifty-five of the National Service Act, 1948.

Power to
extend Part II
to Isle of Man.

12.—(1) His Majesty may by Order in Council direct that this Part of this Act shall extend to the Isle of Man, subject to such adaptations and modifications as may be specified in the Order.

(2) Any Order in Council made under this section may be varied or revoked by a subsequent Order in Council.

PART III**GENERAL****Provision in**
certain cases
for reviving
liability of
released
persons.

13.—(1) Where a person provisionally released from naval, military or air force service—

- (a) is granted his discharge for the purpose of again entering or enlisting in any of the armed forces of the Crown for a term, and
- (b) subsequently, before the completion of that term, is discharged from the force into which he so entered or enlisted,

he shall thereafter be in the same position as if he had not been granted his discharge as mentioned in paragraph (a) of this subsection.

(2) In this section the expression "provisionally released from naval, military or air force service" means released under section one of the Naval and Marine Forces (Temporary Release from Service) Act, 1940, released as mentioned in section two of the Naval Forces (Extension of Service) Act, 1944, or released under section three, four, five or six of the Armed Forces (Conditions of Service) Act, 1939.

Extension
of Part I
to years
1952–1954.

14.—(1) His Majesty may by Order in Council direct that Part I of this Act shall apply in relation to all or any of the years nineteen hundred and fifty-two, nineteen hundred and fifty-three and nineteen hundred and fifty-four as it applies in relation to the year nineteen hundred and fifty-one.

(2) A draft of any Order in Council proposed to be made under this section shall be laid before Parliament, and the draft shall not be submitted to His Majesty except in pursuance of an address presented by each House of Parliament praying that the Order be made.

(3) In sections fifty and fifty-one of the National Service Act, 1948, as applied by virtue of Part II of this Act, words referring directly or indirectly to liability to be called up shall be construed, in relation to a person of a description specified in the table set out in subsection (1) of section one of this Act, on the assumption that the power conferred on His Majesty in Council by this section will be fully exercised.

(4) If any Order in Council is made under this section, references in this Act, or in any enactment or regulations as modified by the Schedule thereto, to Part I of this Act or any provision of the said Part I shall include references to the said Part I or that provision, as the case may be, as extended by the Order.

15.—(1) This Act may be cited as the Reserve and Auxiliary Forces (Training) Act, 1951.

Short title
and inter-
pretation.

(2) In this Act the expression “the Service Authorities” means the Army Council and the Air Council, and the expression “Service Authority” means the Army Council or the Air Council, as the case may require.

SCHEDULE

Section 8.

MODIFICATIONS OF SS. 51 AND 52 OF 11 & 12 GEO. 6. c. 64 AND REGULATIONS THEREUNDER

1. The modifications subject to which sections fifty-one and fifty-two of the National Service Act, 1948, and the regulations under those sections, are applied by virtue of section eight of this Act are the following.

2. The said section fifty-one shall have effect, as applied as aforesaid, as if for the words “in pursuance of Part I of this Act during his term of part-time service” there were substituted the words “in pursuance of Part I of the Reserve and Auxiliary Forces (Training) Act, 1951”.

3. The said section fifty-two and regulations shall have effect, as applied as aforesaid, as if—

(a) for references to summoning for training in pursuance of a training notice served under Part I of the National Service Act, 1948 there were substituted references to calling up for training in pursuance of section one of this Act, and

(b) for references, however expressed, to the period of training required by a notice there were substituted references to the period for which a person is prevented from attending his employment in order to comply with a notice calling him up as aforesaid.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Interpretation Act, 1889	52 & 53 Vict. c. 63.
Police (Property) Act, 1897	60 & 61 Vict. c. 30.
Armed Forces (Conditions of Service) Act, 1939...	2 & 3 Geo. 6. c. 68.
Naval and Marine Forces (Temporary Release from Service) Act, 1940	4 & 5 Geo. 6. c. 4.
Naval Forces (Extension of Service) Act, 1944 ...	7 & 8 Geo. 6. c. 13.
National Service Act, 1948	11 & 12 Geo. 6. c. 64.
Reinstatement in Civil Employment Act, 1950 ...	14 & 15 Geo. 6. c. 10.

CHAPTER 24

Army and Air Force (Annual) Act, 1951

ARRANGEMENT OF SECTIONS

Section

1. Short title.
2. Army Act and Air Force Act to be in force for specified times.

AMENDMENTS OF THE ARMY AND AIR FORCE ACTS

3. Application of Army Act and Air Force Act to the Federation of Malaya.
4. Amendments of Army Act and Air Force Act with respect to affirmations in lieu of oaths.
5. Amendments of s. 91 of Army Act and Air Force Act.
6. Amendment of s. 85 of Army Act.
7. Amendments of provisions of Army Act relating to service property, &c.
8. Amendment of s. 183 of Army Act.

SCHEDULE.—Provisions of the Army Act and the Air Force Act wherein
“affirmation” is to be substituted for “declaration”.

An Act to provide, during twelve months, for the
discipline and regulation of the Army and the Air Force.
[26th April 1951.]

WHEREAS the raising or keeping of a standing army within
the United Kingdom in time of peace, unless it be with
the consent of Parliament, is against law:

And whereas it is adjudged necessary by His Majesty and this
present Parliament that a body of land forces should be continued
for the safety of the United Kingdom and the defence of the
possessions of His Majesty's Crown, and that the whole number
of such forces should consist of five hundred and twenty-seven
thousand:

And whereas it is adjudged necessary that a body of air forces
should be continued for the purposes aforesaid, and that the whole
number of such forces should consist of two hundred and seventy
thousand: